

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 03/12/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C25-02856
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: YADAV ENTERPRISES, INC.,
TENTATIVE RULING:

Defendant Yadev Enterprises, Inc.'s Demurrer to Complaint or, in the Alternative, Motion to Compel Mediation and Arbitration with Motion to Strike is **denied**.

Background

Plaintiff law firm Van De Poel & Levy, LLP (VDPL) filed this action for breach of contract and common counts on October 2, 2025, seeking to recover \$74,300 in unpaid attorney fees from its former client Yadav Enterprises, Inc. (Yadav) and its principal Anil Yadav.

On December 5, 2025, Yadav filed this Demurrer to Complaint or, in the Alternative, Motion to Compel Mediation and Arbitration with Motion to Strike. Yadav seeks dismissal of the complaint or, in the alternative, an order compelling mediation and arbitration and staying the action. Yadav contends that VDPL filed suit in contravention of the parties' retainer agreement, which requires that any fee dispute first be mediated and, if unsuccessful, submitted to binding arbitration under the rules of the Contra Costa County Bar Association pursuant to Business and Professions Code sections 6200 through 6206.

Yadav further moves to strike VDPL's claim for attorney's fees on the ground that the retainer agreement makes mediation a condition precedent to the recovery of fees, and that VDPL forfeited any right to fees by filing suit without first attempting mediation.

In opposition, VDPL denies that it refused mediation and claims that prior to filing suit it sent Yadav a statutory notice of the right to elect bar-sponsored fee arbitration under the Mandatory Fee Arbitration Act (MFAA), that Yadav failed to invoke that right within the statutory period, and that Yadav ignored follow-up communications.

On the demurrer, VDPL argues that it is the wrong procedural vehicle because enforcement of the ADR provision turns on disputed factual issues that cannot be resolved at the pleading stage, including whether a qualifying fee dispute existed at the time suit was filed and whether Yadav's failure to invoke MFAA arbitration constitutes a waiver of the right to demand contractual ADR.

VDPL does not categorically oppose ADR and states that if the court orders it, the action should be stayed rather than dismissed. On the issue of fees, VDPL argues that the retainer agreement does not forfeit the firm's right to recover attorney's fees for failure to mediate before filing suit.

In reply, Yadav largely reiterates its moving arguments. On the attorney fee issue, Yadav argues that the attorney fee prayer should be stricken because attorney fees are only authorized in a suit to collect an arbitration award.

Analysis

The retainer agreement governing the parties' relationship contains the following dispute resolution provision:

9. Mediation and Binding Arbitration - Fees. Any dispute as to the amount of legal fees ***will first be mediated*** and if unsuccessful, will be submitted and subject to the rules of procedure of the Contra Costa County Bar Association as provided by Sections 6200 through 6206 of the California Business and Professions Code. The determination of said arbitrators will be binding, and both parties hereby waive the right to a de novo trial of said dispute. ***If Firm must thereafter file suit for the collection of any sums awarded by arbitration***, Client shall pay reasonable attorneys' fees, together with any and all costs for said collection. Irrespective of the above, if the sum owed to Firm is within the jurisdiction of the Small Claims Court or if Firm is willing to limit its recovery to the limits of the Small Claims Court, Firm may file suit in Small Claims Court and not proceed with arbitration. However, if Client asserts a claim or counter claim in excess of the jurisdiction of the Small Claims Court, then the entire

dispute must be arbitrated as set forth above. ***Without waiving the right to compel arbitration, if arbitration does not occur for whatever reason, the parties agree to litigate this matter before a judge only and expressly waive any right to a jury trial.***

(Durieux Decl., ¶ 3, Exh. B [Retainer Agreement] ¶ 9. Emphasis added; see also, Complaint, Exhs. B, C.)

Demurrer to Complaint

Yadav argues that VDPL cannot state a cause of action because its sole recourse is ADR under the retainer agreement, and thus it has no judicial remedies. The failure to arbitrate in accordance with a contractual provision to arbitrate is a defense to a cause of action. (*Charles J. Rounds Co. v. Joint Council of Teamsters No. 42* (1971) 4 Cal.3d 888.) Courts have sustained demurrers to complaints which are subject to arbitration provisions. (See, e.g., *Rogers v. Peinado* (2000) 85 Cal.App.4th 1 [overruled on other grounds in *Brennan v. Tremco* (2001) 25 Cal.4th 310]; *Leon Handbag Co. v. Leather, Luggage & Handbag Workers* (1969) 276 Cal.App.2d 240.) As stated by the California Supreme Court, where a plaintiff seeks to litigate issues covered by an arbitration provision and has not pursued the arbitration remedy, a defendant may choose to “demur or move for summary judgment on the ground that plaintiff has failed to exhaust arbitration remedies.” (*Charles J. Rounds Co.*, *supra*, 4 Cal.3d at 898.)

VDPL attached the retainer agreement to the complaint, and the complaint is focused solely on Yadav's alleged failure to pay fees, so the dispute falls within the scope of paragraph 9. On its face, then, the complaint implicates the ADR provision. However, whether the ADR provision actually bars this action depends on facts that do not appear on the face of the pleadings. Both parties' papers contain discussion of extrinsic matters, including the circumstances surrounding VDPL's pre-suit communications and Yadav's alleged failure to respond to the MFAA notice. (See Declarations of Durieux and Schwarz.) A demurrer “tests the pleadings alone and not the evidence or other extrinsic matters.” (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Those facts cannot be considered on demurrer.

Because enforcement of the ADR provision turns on disputed factual issues that cannot be resolved on the pleadings alone, the demurrer is overruled.

Motion to Compel Mediation and Arbitration

In the alternative to dismissal, Yadav seeks an order compelling VDPL to submit the matter to mediation to be followed by binding arbitration if mediation is unsuccessful. The authority in the moving papers addresses the court's power to compel arbitration under Code of Civil Procedure section 1281.2. Yadav cites no legal authority under which the court may compel the parties to mediate as a condition precedent to arbitration, or otherwise.

The motion to compel is therefore denied without prejudice.

Motion to Strike Attorney Fees

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving

to strike must appear on the face of the pleading or by way of judicial notice. (*Ibid.*, § 437.)

Code of Civil Procedure section 1033.5, subdivision (a)(10) provides that attorney's fees are recoverable as an item of costs to the prevailing party only when authorized by contract, statute, or law.

Here, Yadav moves to strike VDPL's attorney's fees claim as unauthorized, relying principally on *Johnson v. Siegel* (2000) 84 Cal.App.4th 1087 and *Frei v. Davey* (2004) 124 Cal.App.4th 1506, arguing that VDPL forfeited its right to fees by filing suit without first mediating. Those cases arose under the California Association of Realtors standard form purchase agreement, which contains an express provision stating that a party who commences an action without first attempting mediation "shall not be entitled to recover attorney's fees, even if they would otherwise be available to that party in any such action." (*Johnson, supra*, 84 Cal.App.4th at p. 1100; *Frei, supra*, 124 Cal.App.4th at p. 1509.) In opposition, VDPL argues that paragraph 9 contains no such forfeiture language and that *Johnson* and *Frei* are therefore inapposite. On reply, Yadav argues that because this is a breach of contract action rather than a suit to collect sums awarded by arbitration, the condition that triggers entitlement to fees under paragraph 9 will never materialize.

The court agrees that paragraph 9's fee provision contemplates a post-arbitration collection action and not a general prevailing party fee award. The retainer agreement contains a separate fee provision that Yadav addresses in passing. Paragraph 12 provides: "If Firm must initiate arbitration and/or litigation for the collection of any sums, Client shall pay reasonable attorneys' fees, together with any and all costs for said collection." (Durieux Decl., ¶ 3, Exh. B [Retainer Agreement] ¶ 12.) Yadav contends that paragraph 12 likewise provides no basis for fees because VDPL "bypassed" the mandatory ADR steps.

Whether paragraph 12 authorizes fees in this case is not something the court can resolve on a motion to strike. The answer depends on whether VDPL was obligated to initiate this litigation, a question that is bound up with disputed facts about the parties' pre-suit communications and conduct. On this record, the court cannot conclude that VDPL is not entitled to recover attorney's fees.

In any event, "there is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533; accord, *Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 497 [error to strike attorney fees sought under Code of Civil Procedure section 1021.5, because there is no pleading requirement involved].) Thus, striking the prayer would not foreclose VDPL from seeking fees if a basis to award them is established during the litigation.

The motion to strike is denied.

Disposition

Based on the above, the motion is denied. Yadav seeks to compel mediation and arbitration and VDPL has expressed willingness to participate in ADR if ordered. Nothing in this order prevents the parties from pursuing mediation and arbitration consistent with their agreement, or from stipulating to a stay of this action pending completion of that process.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01164
CASE NAME: ALEJANDRO TORRES VS. B & M TEAR OFF, INC.
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: TORRES, ALEJANDRO
TENTATIVE RULING:

This matter has been reassigned to Department 16 and reset to July 15, 2026.

3. 9:00 AM CASE NUMBER: C22-01284
CASE NAME: DUSTIN GRAHAM VS. ALLIED WASTE SYSTEMS, INC.
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL AND PAGA SETTLEMENT
FILED BY: GRAHAM, DUSTIN
TENTATIVE RULING:

This matter has been reassigned to Department 16 and reset to July 15, 2026.

4. 9:00 AM CASE NUMBER: C23-02357
CASE NAME: LISA ROSS VS. CHENETTE CARTER
HEARING ON SUMMARY MOTION
FILED BY: ROSS, CHARLIE
TENTATIVE RULING:

Before the Court is Defendant Charlie Ross' Motion for Summary Judgment.

The Motion is **denied without prejudice** as outlined below.

Procedural Background

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023. On December 2, 2025, Defendant Charlie Ross sought and obtained a hearing date for the motion for summary judgment/adjudication. The Order set the hearing date for March 12, 2026. It also specifically stated: "You are ordered to file the motion within 7 calendar days of this order." (All caps removed.)

Over two months later, on February 10, 2026, Defendant Charlie Ross filed the instant Motion for Summary Judgment ("Motion").

Legal Standard – Notice

Code of Civil Procedure section 437c(a) provides, in pertinent part: "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. . . . If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc. § 437c(a)(2).) The summary judgment statute does not